

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

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DARNELL WITTER,

Plaintiff,

-against-

**FIRST AMENDED
VERIFIED COMPLAINT**
Index No. 26468/2018E

THE CITY OF NEW YORK, JHONATAN DEL
CARMEN MERCEDES, and CATHERINE GENGO,
being police officers employed by the City of
New York,

Defendants.

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Plaintiff, DARNELL WITTER, by his attorneys, RUBERT & GROSS, P.C., complaining of Defendants, THE CITY OF NEW YORK (hereinafter "CITY"), JHONATAN DEL CARMEN MERCEDES and CATHERINE GENGO, alleges the following as his Verified Complaint:

1. At all times hereinafter mentioned, Plaintiff, DARNELL WITTER ("WITTER"), was and still is a resident of the County of Kings, City and State of New York.
2. Plaintiff, WITTER, is an African-American male who was thirty years of age at the time of the incidents complained of herein.
3. At all times hereinafter mentioned, Defendant, CITY OF NEW YORK (hereinafter "CITY"), was and still is a municipal corporation organized and duly existing under and pursuant to the laws of the State of New York.
4. At all times hereinafter mentioned, Defendant, CITY, maintained a Police Department, the employees of which act as its agents in the area of law enforcement.

5. At all times hereinafter mentioned, Defendant, JHONATAN DEL CARMEN MERCEDES (“DEL CARMEN”), was a police officer with the New York City Police Department.

6. At all times hereinafter mentioned, Defendant, CATHERINE GENGO (“GENGO”), was a police officers with the New York City Police Department.

7. At all times hereinafter mentioned, Defendant, DEL CARMEN, was an employee and/or agent of the New York City Police Department.

8. At all times hereinafter mentioned, Defendant, GENGO, was an employee and/or agent of the New York City Police Department.

9. At all times hereinafter mentioned Defendant, DEL CARMEN, was acting within the scope of his employment as a police officer with the Police Department of the City of New York.

10. At all times hereinafter mentioned Defendant, GENGO, was acting within the scope of her employment as a police officer with the Police Department of the City of New York.

11. At all times hereinafter mentioned Defendant, DEL CARMEN, is sued individually and in his official capacity.

12. At all times hereinafter mentioned Defendant, GENGO, is sued individually and in her official capacity.

13. On October 23, 2017, Plaintiff filed a Notice of Claim with the Comptroller of the City of New York in the manner and mode required by law.

14. Plaintiff testified pursuant to General Municipal Law on May 18, 2018.

15. More than 60 days have elapsed since the filing of the Notices of Claim and adjustment or payment thereof has been neglected or refused.

16. That this action is brought within one (1) year and ninety (90) days from the date that claims accrued.

17. That Plaintiff has complied with conditions precedent applicable to the instant action.

18. That this action falls within one or more of the exceptions of CPLR §1602, including, but not limited to CPLR §1602 (11).

FIRST CAUSE OF ACTION

19. Plaintiff repeats and realleges the allegations set forth above as though set forth herein.

20. On May 1, 2017 at approximately 11:00 p.m. at and around the seventeenth-floor elevators at 530 Olmstead Avenue in Bronx, New York, part of the New York City Housing Authority's Castle Hill Housing Development, employees of the New York City Police Department assigned to PSA 8 in the Bronx, New York in Bronx County, City and State of New York, wrongfully and falsely arrested Plaintiff.

21. On May 1, 2017 at approximately 11:00 p.m. at and around the seventeenth-floor elevators at 530 Olmstead Avenue in Bronx, New York, part of the New York City Housing Authority's Castle Hill Housing Development, defendant, DEL CARMEN, falsely and wrongfully arrested Plaintiff.

22. On May 1, 2017 at approximately 11:00 p.m. at and around the seventeenth-floor elevators at 530 Olmstead Avenue in Bronx, New York, part of the New York City Housing Authority's Castle Hill Housing Development, defendant, GENGO, was wrongfully and falsely

arrested by Defendant, GENGO.

23. In the evening of May 1, 2017, Mr. Witter has been visiting with a friend who lived on the seventeenth floor of 530 Olmstead, Bronx, New York.

24. At approximately 11:00 p.m. on May 1, 2017, DARNELL WITTER was lawfully present at and around the seventeenth-floor elevators at 530 Olmstead Avenue in Bronx, New York, part of the New York City Housing Authority's Castle Hill Housing Development.

25. At that time and place, DARNELL WITTER was leaving the building to go home.

26. At that time and place, DARNELL WITTER was with a building resident waiting for the elevator.

27. At that time and place, the individual Defendants encountered plaintiff waiting by the seventeenth-floor elevators with a resident of the building.

28. At that time and place, the Defendant, City, through its agents, servants and/or employees unlawfully stopped, wrongfully detained and imprisoned plaintiff without probable cause, without an arrest warrant and in bad faith.

29. At that time and place, the Defendant, DEL CARMEN, wrongfully detained and imprisoned plaintiff without probable cause, without an arrest warrant and in bad faith.

30. At that time and place, the Defendant, GENGO, wrongfully detained and imprisoned plaintiff without probable cause, without an arrest warrant and in bad faith.

31. Plaintiff was arrested for public consumption of alcohol in violation of New York City Administrative Code §10-125.

32. At the time of the unlawful detention and imprisonment, plaintiff had not committed any crime.

33. At the time of the unlawful detention and imprisonment, plaintiff had not attempted to commit any illegal act.

34. At the time of plaintiff's unlawful arrest, defendants knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest was false and without probable cause.

35. At the time of the unlawful detention and imprisonment, plaintiff had not drunk any alcoholic beverage in any public place in violation of New York City Administrative Code §10-125.

36. At the time of the unlawful detention and imprisonment, plaintiff had not consumed any alcoholic beverage in any public place in violation of New York City Administrative Code §10-125.

37. At the time of the unlawful detention and imprisonment, plaintiff did not possess any alcoholic beverage in any public place in violation of New York City Administrative Code §10-125.

38. At the time of the unlawful detention and imprisonment, plaintiff did not have an open container with intent to drink or consume an alcoholic beverage in any public place in violation of New York City Administrative Code §10-125.

39. At the time of the unlawful detention and imprisonment, plaintiff did not possess an open container containing an alcoholic beverage in any public place in violation of New York City Administrative Code §10-125.

40. Defendants, including but not limited to defendant, DEL CARMEN and GENGO, arrested and handcuffed Plaintiff.

41. Defendant, DEL CARMEN, forced DARNELL WITTER to the hallway floor.

42. Defendants falsely claimed that there was an arrest warrant for Plaintiff.
43. There was no arrest warrant for Plaintiff.
44. After detaining plaintiff, Defendants transported him to the PSA 8 Stationhouse.
45. At the Stationhouse, the individual Defendants prepared or allowed to be prepared false police reports accusing DARNELL WITTER of public consumption of alcohol in violation of New York City Administrative Code §10-125.
46. The Defendants issued or allowed to be issued Summons 4437450979 falsely accusing DARNELL WITTER of violation New York City Administrative Code §10-125.
47. The Summons required Plaintiff, under threat of issuance of an arrest warrant and of arrest, to appear in Criminal Court to defend against the false charge.
48. Rather than release him with the Summons, the Defendants continued to detain Plaintiff.
49. Defendants transported Plaintiff to the 43rd Precinct Stationhouse for questioning by other officers.
50. Defendant, DEL CARMEN, escorted Plaintiff into the 43rd Precinct Stationhouse but his request that other officers interrogate Plaintiff was declined.
51. Defendants released DARNELL WITTER from custody at approximately 4:00 a.m. on May 2, 2017.
52. Defendant, CITY, through its police officers, agents, servants and/or employees, did wrongfully detain and imprison Plaintiff without warrant or probable cause.
53. Defendant, DEL CARMEN, did wrongfully detain and imprison Plaintiff without warrant or probable cause.

54. Defendant, GENGO, did wrongfully detain and imprison Plaintiff without warrant or probable cause.

55. In commencing and continuing said wrongful detention and imprisonment, Defendants caused Plaintiff to be wrongfully detained in violation of the laws of the State of New York, including right secured by Article I Section 12 of the New York State Constitution.

56. Defendant, CITY, through its agents, servants and/or employees, acted in bad faith and without lawful justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

57. Defendant, DEL CARMEN, acted in bad faith and without lawful justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

58. Defendant, GENGO, acted in bad faith and without lawful justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

59. Defendants willfully and wrongfully accused Plaintiff of having committed a violation of the Administrative Code of the City of New York.

60. The aforesaid arrest was malicious, unlawful and not based upon a warrant, probable cause, and/or other justification, and was therefore a false arrest.

61. As a result of the foregoing, Plaintiff was caused to sustain suffer personal injuries, violation of civil rights, loss of liberty, emotional distress, anguish, anxiety, fear and humiliation, among other injuries.

62. By reason of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SECOND CAUSE OF ACTION

63. Plaintiff repeats and realleges the allegations set forth above as though set forth herein.

64. On May 1, 2017 at approximately 11:00 p.m. at and around the seventeenth-floor elevators at 530 Olmstead Avenue in Bronx, New York, part of the New York City Housing Authority's Castle Hill Housing Development, plaintiff was assaulted and battered by members of the New York City Police Department in violation of rights secured by Article I Section 12 of the New York State Constitution.

65. On May 1, 2017 at approximately 11:00 p.m. at and around the seventeenth-floor elevators at 530 Olmstead Avenue in Bronx, New York, part of the New York City Housing Authority's Castle Hill Housing Development, defendant, DEL CARMEN, assaulted and battered Plaintiff in violation of rights secured by Article I Section 12 of the New York State Constitution.

66. On May 1, 2017 at approximately 11:00 p.m. at and around the seventeenth-floor elevators at 530 Olmstead Avenue in Bronx, New York, part of the New York City Housing Authority's Castle Hill Housing Development, Defendant, GENGO, assaulted and battered Plaintiff in violation of rights secured by Article I Section 12 of the New York State Constitution.

67. At all times mentioned herein, Defendant, DEL CARMEN, was acting under the color of authority, and in furtherance of his employer, the NYPD's, interest.

68. At all times mentioned herein, Defendant, GENGO, was acting under the color of authority, and in furtherance of their employer, the NYPD's, interest.

69. The aforementioned conduct of Defendant, CITY, its agents, servants and/or

employees was willful and wanton and the Defendant acted with reckless disregard for the consequences of the actions.

70. That the aforementioned conduct of Defendant, DEL CARMEN, was willful and wanton and the Defendant acted with reckless disregard for the consequences of his actions.

71. That the aforementioned conduct of Defendant, GENGO, was willful and wanton and the Defendant acted with reckless disregard for the consequences of her actions.

72. As a result of the foregoing, Plaintiff was caused to sustain suffer personal injuries, violation of civil rights, loss of liberty, emotional distress, anguish, anxiety, fear and humiliation, among other injuries.

73. By reason of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

THIRD CAUSE OF ACTION

74. Plaintiff repeats and realleges the allegations set forth above as though set forth herein.

75. Subsequent to Plaintiff's arrest, Defendant, CITY, through its agents, servants and/or employees, did maliciously cause a criminal prosecution to be commenced against Plaintiff in the Criminal Court of the City of New York, Bronx County, by filing an accusatory instrument, without probable cause and in bad faith.

76. Subsequent to Plaintiff's arrest, Defendant, DEL CARMEN, did maliciously cause a criminal prosecution to be commenced against Plaintiff in the Criminal Court of the City of New York, Bronx County, by filing an accusatory instrument, without probable cause and in bad faith.

77. Subsequent to Plaintiff's arrest, Defendant, GENGO, did maliciously cause a criminal prosecution to be commenced against Plaintiff in the Criminal Court of the City of New

York, Bronx County, by allowing the filing an accusatory instrument, without probable cause and in bad faith.

78. That in commencing and continuing said malicious prosecution, Defendant, CITY, its agents, servants and/or employees, caused Plaintiff to be falsely charged with acts in violation of the Administrative Code of the City of New York §10-125.

79. That in commencing and continuing said malicious prosecution, Defendant, DEL CARMEN, caused Plaintiff to be falsely charged with acts in violation of the Administrative Code of the City of New York §10-125.

80. That in commencing and continuing said malicious prosecution, Defendant, GENGO, caused Plaintiff to be falsely charged with acts in violation of the Administrative Code of the City of New York §10-125.

81. Defendant, CITY's misrepresentations caused Plaintiff to be prosecuted under Bronx County Criminal Court Docket Number 2017SX025603 on false charges.

82. Defendant, DEL CARMEN's misrepresentations caused Plaintiff to be prosecuted under Bronx County Criminal Court Docket Number 2017SX025603 on false charges.

83. Defendant, GENGO's misrepresentations caused Plaintiff to be prosecuted under Bronx County Criminal Court Docket Number 2017SX025603 on false charges.

84. Plaintiff had not committed or attempted to commit any illegal acts.

85. Plaintiff had not given Defendant, CITY, its agents, servants and/or employees probable cause to believe that he had committed the illegal acts of which he was accused.

86. Plaintiff had not given Defendant, DEL CARMEN probable cause to believe that he had committed the illegal acts of which he was accused.

87. Plaintiff had not given Defendant, GENGO, probable cause to believe that he had committed the illegal acts of which he was accused.

88. Defendant, CITY, its agents, servants and/or employees, willfully and wrongfully accused Plaintiff of having violated the Administrative Code of the City of New York §10-125.

89. Defendant, DEL CARMEN, willfully and wrongfully accused Plaintiff of having violated the Administrative Code of the City of New York §10-125.

90. Defendant, GENGO, willfully and wrongfully accused Plaintiff of having violated the Administrative Code of the City of New York §10-125.

91. Plaintiff had not drunk an alcoholic beverage in any public place in violation of New York City Administrative Code §10-125.

92. Plaintiff had not consumed an alcoholic beverage in any public place in violation of New York City Administrative Code §10-125.

93. Plaintiff did not possess an alcoholic beverage in any public place in violation of New York City Administrative Code §10-125.

94. Plaintiff did not possess an open container containing an alcoholic beverage in any public place in violation of New York City Administrative Code §10-125.

95. Defendant, CITY, through its agents, servants and/or employees willfully and wrongfully accused Plaintiff of having violated the Administrative Code of the City of New York §10-125.

96. Defendant, DEL CARMEN, willfully and wrongfully accused Plaintiff of having violated the Administrative Code of the City of New York §10-125.

97. Defendant, GENGO, willfully and wrongfully accused Plaintiff of having violated the Administrative Code of the City of New York §10-125.

98. Defendant, CITY, through its agents, servants and/or employees commenced or allowed the commencement of a Criminal Court proceeding against Plaintiff without probable cause and with actual malice.

99. Defendant, DEL CARMEN, commenced or allowed the commencement of a Criminal Court proceeding against Plaintiff without probable cause and with actual malice.

100. Defendant, GENGO, commenced or allowed the commencement of a Criminal Court proceeding against Plaintiff without probable cause and with actual malice.

101. All charges against Plaintiff were dismissed upon acquitted after trial on September 11, 2017.

102. As a result of the foregoing, Plaintiff was caused to suffer personal injuries, violation of civil rights, loss of liberty, emotional distress, anguish, anxiety, fear, and humiliation, among other injuries.

103. By reason of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION

104. Plaintiff repeats and realleges the allegations set forth above as though set forth herein.

105. Defendant, CITY, through its agents, servants and/or employees, negligently performed its police duties and failed to use that degree of care as reasonably prudent police officers would have under similar circumstances.

106. Defendant, DEL CARMEN, negligently performed his police duties and failed to use that degree of care as a reasonably prudent police officer would have under similar circumstances.

107. Defendant, GENGO, negligently performed her police duties and failed to use that degree of care as a reasonably prudent police officer would have under similar circumstances.

108. As a result of Defendants' negligence, Plaintiff was caused to suffer personal injuries, violation of civil rights, loss of liberty, emotional distress, anguish, anxiety, fear, and humiliation, among other injuries.

109. By reason of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION

110. Plaintiff repeats and realleges the allegations set forth above as though set forth herein.

111. That the actions of Defendant, CITY, heretofore described constitute negligence in that Defendant, CITY, negligently trained or failed to train its agents, servants and/or employees, including but not limited to Defendants, DEL CARMEN and GENGO.

112. That the actions of Defendant, CITY, heretofore described constitute negligence in that Defendant, CITY, negligently supervised or failed to supervise its agents, servants and/or employees, including but not limited to Defendants, DEL CARMEN and GENGO.

113. The actions of Defendant, CITY, heretofore described constitute negligence in that Defendant, CITY, negligently disciplined or failed to discipline its agents, servants and/or employees, including but not limited to Defendants, DEL CARMEN and GENGO.

114. Defendant, CITY, was negligent in its hiring of its agents, servants and/or employees, including but not limited to Defendants, DEL CARMEN and GENGO, who Defendant, CITY, knew, or in the course of adequate and proper investigation, should have reasonably known, were unfit to hold their positions.

115. Defendant, CITY, was negligent in its retention of its agents, servants and/or employees, including but not limited to Defendants, DEL CARMEN and GENGO, who Defendant, CITY, knew, or in the course of adequate and proper investigation, should have reasonably known, were unfit to hold the position in that they refused or failed to perform within the statutory and constitutional limits of authority and misused and abused their position.

116. As a result of the negligence of Defendant, CITY, Plaintiff was caused to suffer personal injuries, violation of civil rights, loss of liberty, emotional distress, anguish, anxiety, fear, and humiliation, among other injuries.

117. By reason of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SIXTH CAUSE OF ACTION

118. Plaintiff repeats and realleges the allegations set forth above as though set forth herein.

119. On May 1, 2017 at approximately 11:00 p.m. at and around the seventeenth-floor elevators at 530 Olmstead Avenue in Bronx, New York, part of the New York City Housing Authority's Castle Hill Housing Development, Defendant, DEL CARMEN, wrongfully stopped, detained, searched, and arrested Plaintiff.

120. On May 1, 2017 at approximately 11:00 p.m. at and around the seventeenth-floor elevators at 530 Olmstead Avenue in Bronx, New York, part of the New York City Housing Authority's Castle Hill Housing Development, Defendant, GENGO, wrongfully stopped,

detained, searched, and arrested Plaintiff.

121. That the actions taken by Defendant, DEL CARMEN, were undertaken under color of law and would not have existed but for said Defendant's using his official power.

122. That the actions taken by Defendant, GENGO, was undertaken under color of law and would not have existed but for said Defendants' using her official power.

123. That Defendant, DEL CARMEN, deprived Plaintiff of his liberty and his right to be free from unreasonable searches and seizures in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

124. That Defendant, GENGO, deprived Plaintiff of his liberty and his right to be free from unreasonable searches and seizures in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

125. That the conduct and actions of Defendant, DEL CARMEN, acting under color of State law, in stopping and arresting Plaintiff without lawful basis were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of his acts and were designed to and did cause injury in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

126. That the conduct and actions of Defendant, GENGO, acting under color of State law, in stopping and arresting Plaintiff without lawful basis were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of her acts and were designed to and did cause injury in violation of Plaintiff's Constitutional rights as guaranteed

under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

127. As a result of the above-mentioned constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of civil rights, loss of liberty, emotional distress, anguish, anxiety, fear, and humiliation, among other injuries.

128. By reason of the foregoing, Plaintiff demands judgment against Defendants, DEL CARMEN and GENGO, in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SEVENTH CAUSE OF ACTION

129. Plaintiff repeats and realleges the allegations set forth above as though set forth herein.

130. By the conduct described herein, Defendant, DEL CARMEN, is liable under 42 U.S.C. § 1983 for violating Plaintiff's constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution and under the Constitution of the State of New York.

131. By the conduct described herein, Defendant, GENGO, is liable under 42 U.S.C. § 1983 for violating Plaintiff's constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution and under the Constitution of the State of New York.

132. The individual Defendants commenced or allowed the commencement of a Criminal Court proceeding against Plaintiff without probable cause and with actual malice.

133. The prosecution caused deprivation of Plaintiff's liberty.

134. The prosecution terminated in Plaintiff's favor on September 11, 2017.

135. That the actions taken by Defendants were undertaken under color of law and would not have existed but for said Defendants' using their official power.

136. That as a result of the aforementioned violations of Plaintiff's civil rights, Plaintiff was caused to sustain and suffer personal injuries, violation of civil rights, loss of liberty, emotional distress, anguish, anxiety, fear, and humiliation, among other injuries.

137. By reason of the foregoing, Plaintiff demands judgment against Defendants, DEL CARMEN and GENGO, in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

EIGHTH CAUSE OF ACTION

138. Plaintiff repeats and realleges the allegations set forth above as though fully set forth at length herein.

139. By their conduct and actions in unlawfully arresting and imprisoning Plaintiff and maliciously prosecuting him, Defendants, DEL CARMEN and GENGO, violated Plaintiff's rights under the United States Constitution, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§1983 and 1988.

140. Defendant, DEL CARMEN, created false evidence against plaintiff.

141. Defendant, GENGO, created false evidence or allowed the creation of false evidence against plaintiff.

142. Defendant, DEL CARMEN, forwarded false evidence to the Criminal Court Clerk, Judges of the Criminal Court, and prosecutors in the Bronx County District Attorney's office.

143. Defendant, GENGO, forwarded false evidence or allowed false evidence to be forwarded to the Criminal Court Clerk, Judges of the Criminal Court, and prosecutors in the

Bronx County District Attorney's office.

144. In creating false evidence against Plaintiff, and in providing false information to the Criminal Court and prosecutors, the Defendant, DEL CARMEN, violated Plaintiff's right to a fair trial under the United States Constitution.

145. In creating or allowing the creation of false evidence against Plaintiff, and in providing or allowing the provision of false information to the Criminal Court and prosecutors, the Defendant, GENGO, violated Plaintiff's right to a fair trial under the United States Constitution.

146. That Defendants, DEL CARMEN and GENGO, violated Plaintiff's civil rights by fabricating an account and/or evidence concerning the stop and arrest of Plaintiff; withholding exculpatory evidence; failing to properly investigate the circumstances of the offense of which Plaintiff was wrongfully accused; and in knowingly accusing Plaintiff of an offense that Defendants knew he had not committed.

147. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of civil rights, loss of liberty, emotional distress, anguish, anxiety, fear, and humiliation, among other injuries.

148. By reason of the foregoing, Plaintiff demands judgment against Defendants, DEL CARMEN and GENGO, in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

NINTH CAUSE OF ACTION

149. Plaintiff repeats and realleges the allegations set forth above as though fully set forth at length herein.

150. Defendant, DEL CARMEN, failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which Plaintiff was subjected despite the fact that he had opportunities to do so.

151. Defendant, GENGO, failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which Plaintiff was subjected despite the fact that she had opportunities to do so.

152. Defendants, DEL CARMEN and GENGO, and each of them, thereby displayed deliberate indifference to Plaintiff's rights, including but not limited to Plaintiff's right to be free from unreasonable stops, searches and seizures; right to be free unlawful prosecution; and right to due process and to a fair trial.

153. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of civil rights, loss of liberty, emotional distress, anguish, anxiety, fear, and humiliation, among other injuries.

154. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

TENTH CAUSE OF ACTION

155. Plaintiff repeats and realleges the allegations set forth above as though fully set forth at length herein.

156. The acts by the police Defendants described above were carried out pursuant to policies and practices of Defendant, CITY, which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the Defendant City and its agency, the NYPD.

157. At all times material to this complaint, Defendant, CITY, acting through its Police Department and through the individual Defendants had *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

158. At all times hereinafter mentioned, Defendant, CITY, had a policy and practice of ignoring citizens' rights as guaranteed by the United States Constitution and the Constitution of the State of New York.

159. Defendant, City, had a policy of ignoring law enforcement improprieties and misconduct, including the purposeful and wrongful accusation of citizens' committing crimes that it knew they had not committed.

160. That the City's policymaker's failure to train its employees in the constitutional limits of their authority evinced a pattern of deliberate indifference to the constitutional rights of the citizens of the City of New York.

161. At all times material to this complaint, Defendant, CITY, acting through its Police Department and through the individual Defendants, had *de facto* policies, practices, customs, and usages of failing to properly train, screen, supervise, or discipline employees and police officers, and of failing to inform the individual Defendants' supervisors of their need to train, screen, supervise or discipline said Defendants.

162. These policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

163. At all times material to this complaint, the Defendant CITY, acting through its police department and through the individual Defendants, had *de facto* policies, practices, customs and/or usages of failing to assure that that citizens' constitutional rights were protected,

including the right not to be wrongfully accused of committing crimes that the police knew they had not committed.

164. At all times Defendant, CITY, had a policy of prosecuting individuals in violation of their constitutional rights to be free from searches and seizures.

165. All of the acts by the individual Defendants described above were carried out pursuant to policies and practices of the City of New York and the Police Department, which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the Defendant City and its agency and the NYPD.

166. The existence of such unlawful *de facto* policies and/or well-settled and widespread customs and practices has been known to supervisory and policy-making officers and officials of the CITY and the NYPD for a substantial period of time.

167. Despite knowledge of such unlawful *de facto* policies and practices, these supervisory and policy-making officers and officials of the CITY and the NYPD did not take steps to terminate these policies and practices, did not discipline individuals who engaged in such practices, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanctioned and ratified these policies, customs, and practices through their deliberate indifference to or reckless disregard of the effect of said policies, customs and practices upon the constitutional rights of persons in the City of New York.

168. The CITY's policies and practices in existence at the time of the conduct complained of herein, which caused Plaintiff's injuries herein include, inter alia, the following:

- a. The failure to properly supervise, train, instruct, and discipline

police officers with regard to proper conduct and investigation at and in relation to a crime scene;

- b. The failure to properly supervise, train, instruct, and discipline police officers with regard to the preparation of truthful accusatory instruments;
- c. The failure to properly supervise, train, instruct, and discipline police officers with regard to the preparation of truthful police paperwork, or to correctly and accurately document and preserve evidence or to memorialize investigative steps taken, or circumstances surrounding the obtaining of evidence, that could be relevant to the investigation and/or prosecution, and/or discoverable in any litigation;
- d. The failure to properly supervise, train, instruct, and discipline police officers with regard to the New York State Penal Law and the state and federal Constitutions, and with regard to adequate evidence of crimes and to discipline those who unjustifiably charge and prosecute or continue to prosecute persons accused of crimes in the absence of probable cause;
- e. the failure to properly supervise, train, instruct, and discipline police officers, including Defendants herein, known to be irresponsible in their dealings with citizens of the community, known to violate state and federal law and state and federal constitutional limitations in their investigative and law enforcement conduct, known to fabricate and falsify evidence, known to deprive criminal Defendants of their right to a fair trial, and known to arrest and initiate/continue prosecution in the absence of probable cause;
- f. Failing to establish or assure the functioning of a bona fide and meaningful departmental system for dealing with complaints of police misconduct, but instead responding to these types of complaints with bureaucratic power and official denials calculated to mislead the public;
- g. Failing to adequately investigate, monitor, audit, and respond to citizen complaints and other claims of police misconduct with the NYPD, such that Defendant City and the NYPD knew about and acquiesced in a custom of tolerating constitutional, statutory, and common law violations;
- h. The tacit acceptance of and encouragement of a code of silence wherein police officers regularly cover up police misconduct by

refusing to report other officers' misconduct or by telling false and/or incomplete stories, inter alia, in sworn testimony, official reports, in statements to the Civilian Complaint Review Board ("CCRB") and the Internal Affairs Bureau, and in public statements designed to cover for and/or falsely exonerate accused police officers;

- i. Encouraging and/or failing to discipline officers for "testilying" and/or fabricating false evidence to bring about the police officers' preconceived perceptions or determinations of guilt, including, but not limited to, such perceptions and/or determinations influenced by racial prejudice and/or ethnic bias.

169. That Defendant CITY, failed to implement proper procedures for the identifications of alleged perpetrators of violation of civil rights and of failing to properly train, supervise or discipline police supervisors and subordinate officers to prevent them from failing to assure that proper procedures were implemented.

170. That such policies, practices, customs and/or usages are a direct and proximate cause of the unconstitutional conduct alleged herein.

171. At all times material to this complaint, the Defendant, CITY, acting through its Police Department and through the individual Defendants, had *de facto* policies, practices, customs and/or usages of encouraging and/or tacitly sanctioning the cover-up of law enforcement officers' misconduct, through the fabrication of false accounts and evidence and/or the withholding of exculpatory evidence.

172. The CITY's policies, practices and customs in existence at the time of failing to supervise, train, instruct, and discipline police officers and encouraging their misconduct are further evidenced, inter alia, by the following:

- a. The Report of the Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department ("Mollen Commission Report"), dated July 7, 1994,

states:

“In the face of this problem [of corruption], the [New York City Police] Department allowed its systems for fighting corruption virtually to collapse. It has become more concerned about the bad publicity that corruption disclosures generate than the devastating consequences of corruption itself. As a result, its corruption controls minimized, ignored and at times concealed corruption rather than root it out. Such an institutional reluctance to uncover corruption is not surprising. No institution wants its reputation tainted – especially a Department that needs the public’s confidence and partnership to be effective. A weak and poorly resourced anti-corruption apparatus minimizes the likelihood of such taint, embarrassment and potential harm to careers. Thus, there is a strong institutional incentive to allow corruption efforts to fray and lose priority – which is exactly what this Commission uncovered. This reluctance manifested itself in every component of the Department’s corruption controls from command accountability and supervision, to investigations, police culture, training and recruitment.

“For at least the past decade, the system designed to protect the Department from corruption minimized the likelihood of uncovering it.”

Mollen Commission Report, at 2-3.

- b. Accordingly, in 1990, the Office of the Special Prosecutor, which investigated charges of police corruption, was abolished.
- c. The Mollen Commission concluded that police perjury and falsification of official records

“is probably the most common form of police corruption facing the criminal justice system

* * *

Regardless of the motives behind police falsifications, what is particularly troublesome about this practice is that it is widely tolerated by corrupt and honest officers alike, as well as their supervisors. Corrupt and honest officers told us that their supervisors knew or should have known about

falsified versions of searches and arrests and never questioned them.

* * *

What breeds this intolerance is a deep-rooted perception among many officers of all ranks within the Department that nothing is really wrong with compromising facts to fight crime in the real world. Simply put, despite the devastating consequences of police falsifications, there is a persistent belief among many officers that it is necessary and justified, even if unlawful. As one dedicated officer put it, police officers often view falsification as, to use his words, ‘doing God’s work’ – doing whatever it takes to get a suspected criminal off the streets. This attitude is so entrenched, especially in high-crime precincts, that when investigators confronted one recently arrested officer with evidence of perjury, he asked in disbelief, ‘What’s wrong with that? They’re guilty.’”

Mollen Commission Report at 36, 40-41.

- d. Since at least 1984, Defendant, City, the NYPD and the Bronx County District Attorney’s Office have been on notice that their training of police officers has been inadequate and that police officers joining the force, including, on information and belief, individual Defendant police officers herein, were disproportionately involved in misconduct and abuse. See, e.g., Mayor’s Advisory Committee on Police Management and Personnel Policy, Final Report, February 24, 1987.
- e. The City of New York Office of the Comptroller, in an unpublished report, found that the police often conduct inadequate investigations.
- f. Prior to July 1993, the CCRB, which is responsible for receiving and investigating complaints of police misconduct made by citizens against members of the NYPD, operated as an agency of the NYPD rather than as an independent, unbiased entity.
- g. During the 1980s and early 1990s, in and about the time frame of this case, the CCRB received numerous complaints of police misconduct, but failed to fully investigate many of them and substantiated the guilt of the accused police officer in a

suspiciously minuscule number of cases.

- h. On average, in 1985-1988, the CCRB conducted complete investigations of only 27 percent of the complaints received, closed 45 percent of the total cases without completing full investigations, and substantiated (i.e., found the subject employee guilty of the alleged act of misconduct) only 1.9 percent of the total complaints received.
- i. In 1989, the CCRB conducted complete investigations of only 29 percent of the 3,515 complaints received, closed 41 percent of the total cases without completing full investigations, and substantiated only 2.6 percent of the total complaints received.
- j. On average, in 1990-1992, the CCRB conducted complete investigations of only 36 percent of the complaints received, closed 40 percent of the total cases without completing full investigations, and substantiated only 3.3 percent of the total complaints received.
- k. The CCRB has also failed to recommend disciplinary action in the vast majority of its cases.
- l. On average, in 1985-1988, the CCRB recommended disciplinary action in only 6.7 percent of its disposed of cases.
- m. In 1989, the CCRB recommended specific disciplinary action to the Police Commissioner in only 3.4 percent of its disposed of cases (i.e., 110 recommendations of discipline out of the 3262 disposed of complaints).
- n. On average, in 1990-1992, the CCRB recommended disciplinary action in only 7.5 percent of its disposed of cases.
- o. Moreover, most of the complaints that are substantiated by the CCRB do not result in any kind of meaningful discipline. For instance, as of November 14, 1991, of the 81 officers who faced departmental trials in 1991, 47 were cleared, and 34 were disciplined with penalties ranging from loss of vacation to a 90-day suspension.
- p. Damages have been awarded to victims of police misconduct in 300-400 cases annually since 1988, as a result of out-of-court settlements or judgments in civil actions. Meanwhile, on average, only about 107 complaints were substantiated annually by the CCRB in 1988-1992.
- q. The money paid out by the City in damages to alleged victims of police misconduct rose from approximately \$7 million in 1988, to \$13.5 million in 1992, to \$24 million in 1994.

- r. More than \$82 million was paid in damages to victims of police misconduct in 1352 cases between 1992 and 1995.
- s. In the vast majority of police misconduct cases that result in verdicts or substantial settlements for the victims, Defendant City imposes no discipline, either before or after resolution in court, almost never reopens an investigation previously conducted after such resolution, and sometimes promotes the abusive officer to a position of greater authority despite the judicial resolution.
- t. In none of the approximately 8,000 complaints reviewed by the CCRB in 1987 and 1988 did any police officer provide evidence in support of a complainant.
- u. Former New York County District Attorney Robert Morgenthau has been quoted as acknowledging that in the NYPD there is a "code of silence," or a "code of protection" that exists among officers and that is followed carefully.
- v. In 1985, former Police Commissioner Benjamin Ward, testifying before a State Senate Committee, acknowledged the existence of the "code of silence" in the NYPD.
- w. Former New York City Police Commissioner Robert Daly wrote in 1991 that the "blue wall of solidarity with its macho mores and prejudices, its cover-ups and silence, is reinforced every day in every way."

173. Plaintiff's injuries were a direct and proximate result of the wrongful policies, practices, customs and/or usages complained of herein and in existence at the time of the incidents complained of herein and of the knowing and repeated failure of the Defendant, CITY and the NYPD to properly supervise, train and discipline their police officers.

174. Defendant, CITY, knew or should have known that the acts alleged herein would deprive Plaintiff of his rights, in violation of the United States Constitution and the Constitution of the State of New York, including, without limitation, Plaintiff's freedom from deprivation of liberty without due process of law.

175. Defendant, CITY, is directly liable and responsible for the acts of the Defendant officers because it repeatedly and knowingly failed to properly supervise, train, instruct, and

discipline them and because it repeatedly and knowingly failed to enforce the rules and regulations of the NYPD, and to require compliance with the constitutions and laws of the State of New York and the United States.

176. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of civil rights, loss of liberty, emotional distress, anguish, anxiety, fear, and humiliation, among other injuries.

177. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

ELEVENTH CAUSE OF ACTION

178. Plaintiff repeats and realleges the allegations set forth above as though fully set forth at length herein.

179. Plaintiff, DARNELL WITTER, is an African American male who, at the time of the incidents complained of herein was thirty years of age.

180. Defendants initiated law enforcement action against Plaintiff based on his actual and/or perceived race, national origin, and/or color, rather than Plaintiff's behavior or other information linking him to suspected unlawful activity.

181. The Defendants engaged in bias-based profiling in violation of Section 14-151(c)(1) of the Administrative Code of the City of New York.

182. As a result of the foregoing, Plaintiff was caused to suffer personal injuries, violation of civil rights, loss of liberty, emotional distress, anguish, anxiety, fear, and humiliation, among other injuries.

183. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

TWELFTH CAUSE OF ACTION

184. Plaintiff repeats and realleges the allegations set forth above as though fully set forth at length herein.

185. That the actions of Defendants heretofore described resulting in Plaintiff's stop, detention, imprisonment, search, assault and battery, malicious prosecution, and denial of fair trial rights deprived Plaintiff of rights, privileges and immunities as guaranteed under the United States Constitution, Amendments Four, Six and Fourteen, and the Civil Rights Act, 42 U.S.C. §1983.

186. That in the event that Plaintiff is successful in the prosecution of the aforesaid claim(s), Plaintiff shall be a prevailing party within the meaning of 42 U.S.C. §1988 and entitled to the recovery of attorneys' fees from Defendants.

187. By reason of the foregoing, Defendants became liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, Plaintiff, respectfully demands judgment against Defendants, THE CITY OF NEW YORK, JHONATAN DEL CARMEN MERCEDES, and GENGO and requests compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; costs, interest and attorneys' fees under 42 U.S.C. §1988 and N.Y.C. Administrative Code §141- 15(d), and such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
June 21, 2019

RUBERT & GROSS, P.C.
Attorneys for Plaintiff
150 Broadway, Suite 712
New York, New York 10038
(212) 608-3103


By: MATTHEW FLAMM

VERIFICATION

MATTHEW FLAMM, an attorney admitted to practice in the Courts of New York, states, under penalties of perjury:

I am associated with the law firm of RUBERT & GROSS, P.C., attorneys of record for Plaintiff in the within action; I have read the foregoing FIRST AMENDED VERIFIED COMPLAINT and know the contents thereof, the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.

The reason this verification is being made by me and not by the Plaintiff is because the Plaintiff does not reside in the county within which we maintain our office.

The grounds of my belief as to all matters not stated upon my own information are as follows: conversations with Plaintiff and the documents contained within my file.

Dated: New York, New York
June 21, 2019


MATTHEW FLAMM